# EMPLOYEE HANDBOOK (REVISION 7)

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**A - GENERAL DESCRIPTION**

1. Unless otherwise provided in the employment contract, this employee handbook ('Employee Handbook') provides rules and regulations relating to the conditions of employment, applicable to all employees of EARTHEPC PROJECTS PRIVATE LIMITED.
2. The term 'Company' mentioned in the Employee Handbook referred to the EARTHEPC PROJECTS PRIVATE LIMITED.
3. The Company reserves the right to amend all or any of the terms and conditions in this Employee Handbook, as and when deemed necessary, add, supersede or cancel some parts or all of the rules and regulations, in order to be suitable to the social or economic situation and comply with the laws concerned.

**B –ATTENDANCE POLICY.**

**Objective:** We EARTHEPC PROJECTS PVT LTD Values the punctuality and attendance of our employees, as punctuality and regular attendance recording and tracking are the signs of the best attendance policy. They both are required in order to ensure optimal productivity and good work is done. Regular attendance and punctuality are important to keep your team and the company running smoothly. Arriving late, being tardy, or absent from work causes disruptions and burdens colleagues.

| | **For Head office Employee** | **For Site Employee** |
|---|---|---|
| Timings | 10:00 AM to 7:00 PM Or As per site requirement – Minimum 9 hours must be completed | 9:00 AM to 6:00 PM Or As per site requirement – Minimum 9 hours must be completed |
| Lunch Break | 1 Hour | 1 Hour |
| Grace Time | In Time : 9:30 AM to 10:30 AM<br>Out Time : 6:30 PM to 7:30 PM subject to employee has to complete 9 hours of day | In Time : 8:00 AM to 10:30 AM<br>Out Time : 5:00 PM to 7:30 PM<br>Based on site requirement subject to employee has to complete 9 hours of day. |
| Compensatory Off ( C off) | Site Employee shall be counted based presence of Employee during paid holiday / Sunday / public holiday. No cash / salary compensation shall be paid in case of accumulated in C off. Accumulated C off shall be encased only in terms of leave only. | |

**1. Primary Attendance System**

- All employees, whether posted at Head Office (HO) or Project Sites, must record their attendance exclusively through the "HR Shashtri App" with location services (GPS) enabled.
- Punch-In and Punch-Out must be done strictly from the assigned work location only. Any attendance marked from a residence, transit point, or any other non-work location shall be invalid.
- The GPS coordinates and timestamps captured by the App shall serve as primary proof of presence and timing. If the GPS location is disabled, tampered with, or found incorrect, the attendance shall be treated as Absent.
- No missed punch, post-entry, or manual correction shall be entertained unless specifically approved through the Earth Attendance Group as defined herein.
- Employees must ensure the App is functional and that internet connectivity is available prior to Punch-In. Technical failure without timely intimation shall not be considered a valid excuse.

**2. Earth Attendance Group – Regularization Backup**

- The Earth Attendance Group exists solely to record attendance in case of technical issues with the HR Shashtri App or non-mapped locations.
    1. This includes:

       a) HO employees attending outstation or client-site duties.

       b) Site employees temporarily deployed to an alternate site.
- Prior approval from the Reporting Manager is mandatory before posting in the Group.
- The following message format must be strictly followed:

  Name : IN/OUT : Time : Date

  *(Example: Bhavin Shah : IN : 9:45 AM : 24-10-25)*
- The timestamp of the message must correspond to the actual time of reporting or leaving.
- Any backdated, manipulated, or pre-drafted message will be treated as invalid.
- DPRs, WhatsApp messages, calls, or emails shall not be accepted as proof of attendance.

- Any deliberate misuse of the Group, false entry, or repeated non-compliance may lead to disciplinary action, including suspension, loss of pay, or termination of employment.

**3. Festival and Working Hour Policy**

- No special allowances, late arrivals, or early departures shall be permitted for any festival or occasion, including Dhanteras, Navratri, Eid, Christmas, or similar events.
- Work-from-home shall not be allowed under any circumstances.
- Employees may be required to extend working hours based on business or project exigencies, and such cooperation shall form part of their contractual duties.

**4. Working Conduct and Daily Attendance Compliance**

- Employees are **strictly prohibited** from leaving the workplace during duty hours for personal reasons or engaging in private work.
- Exception shall apply only when the employee is on **official duty** (e.g., client meetings, inter-site visits, material collection) with **prior permission** from the Reporting Manager.
- Any day where **total working time is less than nine (9) hours** shall be treated as **Half Day Leave** or **Half Day Deduction**, as applicable.
- Any day where **total working time is less than five (5) hours** shall be treated as **Full Day Absent**.
- Repeated violations shall invite **disciplinary action**, which may include deduction of salary, written warning, or other measures deemed appropriate by Management.

**5. Data Integrity and Record Falsification Clause**

- Any form of **tampering, manipulation, or falsification** of attendance data, including but not limited to:
    1. disabling GPS or location access,
    2. using false coordinates or spoofing applications,
    3. marking attendance for another employee,
    4. altering system timestamps or screenshots,

    shall be considered **gross misconduct**.

- Such actions shall attract **disciplinary proceedings** under the Company's code of conduct and may result in **salary deduction, suspension, termination of employment**, and/or **legal action** under applicable labour and cyber laws.
- The Company reserves the right to **audit and verify attendance logs, device data, and GPS trails** periodically to ensure data authenticity.

**8. Accountability and Payroll Compliance**

- It is the employee's responsibility to ensure compliance with attendance requirements. Any non-compliance resulting in delayed payroll processing shall be borne solely by the employee.
- Attendance data shall be frozen on the 3rd working day of each month for payroll computation.
- Any regularization request made after this date shall not be entertained, irrespective of managerial approvals.
- For Site Employees, working beyond 9 hours per day shall be considered for Compensatory Off (C-Off) only upon approval from both the Reporting Head and Department Head.
- Uninformed absence or leave taken without prior intimation shall not be adjusted against C-Offs or any other leave balance.

**9. Support and Queries**

- In case of **technical or access-related issues**, employees must **immediately contact the HR Department** in person or through official communication channels.
- All queries, clarifications, or grievances relating to **attendance, payroll, or salary** must be routed **exclusively through the HR Department**. Communication through informal or third-party channels shall not be recognized.

## C – VOUCHER / EXPENSE SHEET PAYMENT CYCLE & PROCESS

### Objective

To ensure uniformity, transparency, and timely processing of employee reimbursements and business-related expenses, all employees are required to adhere strictly to the following procedures and timelines.

### 1. Submission of Expense / Voucher Sheets

- All employees must submit their **monthly expense or voucher sheet** to the **Accounts Department** on or before the **5th day of each month**, along with the corresponding **bills, receipts, and supporting documents** in proper sequence.
- Each voucher must clearly specify the **nature of expense, project/site name, period covered, and purpose** for which the expenditure was incurred.
- Vouchers submitted without proper documentation, signatures, or required approvals shall be considered **incomplete** and shall not be processed until rectified.

### 2. Late or Combined Submissions

- Any **combined submission of multiple months** or vouchers submitted **after the 5th of the month** will not be given immediate processing priority.
- Such vouchers will be reviewed and verified by the **Accounts Department** and the **respective approving authority** at their **convenient and available time slot**, depending on workload and month-end closure schedules.
- The Company shall not be held responsible for any **delay in reimbursement** arising from late submission or incomplete supporting documentation.

### 3. Use of Personal Vehicle for Official Duty – Reimbursement Policy

- Employees authorized to use their **personal vehicles** for official duties shall be eligible for reimbursement of travel expenses, **subject to prior approval** from their Reporting Manager or Department Head.

- Reimbursement will be made **only upon submission of a verified travel log / movement record** certified by the concerned superior officer.
- The following rates shall apply for official travel using personal vehicles:
    1. **Two-Wheeler** – ₹3.00 per kilometre
    2. **Four-Wheeler** – ₹6.00 per kilometre
- The Company reserves the right to **review or revise** the reimbursement rates periodically based on fuel price fluctuations, statutory changes, or internal policy review.
- Fuel reimbursement shall be made **only for genuine business-related travel**, and not for commuting between residence and office/site, unless specifically approved in writing.
- Any **false or inflated claims** shall be treated as **misconduct** and may lead to disciplinary action, including recovery of excess payment, suspension, or termination, as deemed appropriate by the Management.

**D – LEAVE & LEAVE PROCEDURE**

| Type of Leave | Entitlement (Per Year) | Carry Forward | Eligibility / Applicability |
|---|---|---|---|
| **Privilege Leave (PL)** | 18 days | Yes (Up to 45 days) | After completion of 240 working days |
| **Casual Leave (CL)** | 6 days | No | After completion of 60 working days |
| **Sick Leave (SL)** | 6 days | Yes | After completion of 60 working days |
| **Paternity Leave** | 3 days | N.A. | After completion of 60 working days |
| **Maternity Leave** | As per the Maternity Benefit Act, 1961 | N.A. | As per Law |
| **Compensatory Off (C-Off)** | As Earned | Yes (to be availed within 60 days) | From date of joining |

**1. Maternity Leave Policy**

Maternity leave shall be governed by the **Maternity Benefit Act, 1961**, as amended from time to time.

- Female employees are entitled to **26 weeks (182 days)** of paid maternity leave for the first two surviving children and **12 weeks** for subsequent births.
- Maternity benefits are applicable only after **80 days of continuous service**.
- Written intimation with medical proof must be submitted to HR as soon as pregnancy is confirmed.
- The company reserves the right to verify eligibility and documentation before processing benefits.

**2. Public & Festival Holidays**

The following are the officially recognized **paid holidays** for all employees:

1. Makar Sankranti – 14th January
2. Republic Day – 26th January
3. Raksha Bandhan
4. Independence Day – 15th August
5. Janmashtami
6. Gandhi Jayanti – 2nd October
7. Dussehra / Vijayadashami
8. Diwali
9. New Year
10. Bhai Dooj

**Optional Holiday Policy:**

- Employees may opt for up to 10 alternate festival holidays (e.g., Eid, Muharram, Christmas, etc.) equal in number to standard holidays.
- If employee opt for Optional holidays then it must be pre-declared at the time of joining.

- The total number of paid holidays remains the same for all employees, irrespective of religion or cultural preference.

**3. Leave Application and Approval Process**

- **Mode of Application:**

  All leave applications must be submitted through the **HR Shashtri App** or by **official email** to the immediate Reporting Manager and the HR Department. Oral or informal communication shall not be considered a valid leave request.
- **Privilege Leave (PL):**

  Privilege Leave must be applied for at least **seven (7) days in advance** of the intended leave date.

  Approval of PL shall be **subject to work exigencies**, project requirements, and the discretion of the Reporting Manager and Department Head.

  The Company reserves the right to **defer, curtail, or cancel** approved PL in case of urgent business needs.
- **Casual Leave (CL) and Sick Leave (SL):**

  For **Casual Leave**, employees must inform their Reporting Manager and HR **at least one (1) working day in advance.**

  For **Sick Leave**, the employee must inform within **one (1) hour of reporting time** on the first day of absence.

  Failure to submit medical proof, if demanded, may result in such leave being treated as **leave without pay**.
- **Unapproved or Unauthorised Leave:**

  Any leave availed without prior approval shall be treated as **Absent Without Leave (AWOL)**.

  Such absence will result in **loss of pay** and may attract **disciplinary action** as per company policy.

  Repeated instances of unapproved leave or unauthorized absence shall be treated as **misconduct** under the Company's Disciplinary Policy.
- **Leave During Notice Period:**

  Leave during the notice period shall **not ordinarily be permitted**.

In exceptional or unavoidable circumstances, such leave may be granted **only with written approval** from both the **Department Head** and **HR Department**.

Any unapproved absence during the notice period may result in **extension of the notice period** or **forfeiture of pending dues or Full & Final settlement**.

**4. Compensatory Off (C-Off) Policy**

1. Granted when employees work on **official holidays or declared weekly offs**, subject to prior written approval.
2. Must be availed within **60 days**; otherwise, the C-Off shall **lapse automatically**.
3. C-Offs cannot be adjusted against unapproved absences.

**5. Privilege Leave (PL) Encashment**

***Eligibility***

- PL encashment shall be available only:

  a) At the time of **resignation, termination, retirement, or separation**, and

  b) When the employee has **completed at least one year of continuous service**.
- Encashment is applicable for **accrued PL balance exceeding 12 days** at the time of separation, subject to a **maximum carry-forward of 45 days**.

***Calculation Formula***

Encashment shall be calculated as follows:

**PL Encashment Amount = (Last Drawn Basic Salary ) ÷ 26 × No. of Unutilized PL Days**

**Explanation:**

- “26” represents the standard number of working days in a month, as per law.
- Only **Basic** shall be considered for calculation (not gross salary).
- Fractional days shall be rounded down to the nearest full day.
- Encashment will be processed with **Full & Final Settlement** within 45 working days of separation or as per statutory timelines.

***Restrictions & Conditions***

- No PL encashment shall be permitted during service.
- PL cannot be encashed or adjusted against notice period.
- PL balance beyond 45 days shall automatically **lapse** at the end of the calendar year.

The Management reserves the right to amend, interpret, or modify the leave and encashment policy in accordance with statutory amendments, operational needs, or business exigencies, without compromising employee rights under applicable labour laws.

**E – BUSINESS TRIP**

The Company may at any time require an employee to undertake business trip under written approval of his superior.

1. Daily Allowance for Business Trip purpose - If Office Employee is on business trip which is outside Ahmedabad and working time is more than 12 hours than 300 INR Per Day Daily allowance shall be paid as Breakfast, Lunch & Dinner.
2. Lodging and boarding allowance to Business Trip - Employee to take approval of HOD before staying any hotels during business trip. Employee to select cost effective mode of transportation for travelling & same shall be approved by HOD.

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**F – SITE ACCOMMODATION POLICY**

In order to ensure convenience and operational efficiency for employees deputed at project sites, the Company shall provide accommodation facilities under the following terms and conditions:

1. **Provision of Accommodation**

   The Company shall provide **shared accommodation** to employees assigned at project or site locations. The type and standard of accommodation shall be determined by the Company, based on project location, availability, and operational requirements.
2. **Facilities Provided by the Company**

   The Company shall provide the following basic amenities as part of the site accommodation:

- Mattress / Bed setup
- Potable water supply
- Electricity (subject to local availability and load conditions)
- Transportation between room and site (to and fro)

3. **Employee's Personal Expenses**

   All other expenses or facilities beyond those expressly listed above — including but not limited to **food, cooking arrangements, utensils, laundry, toiletries, cleaning supplies, and other personal items** — shall be the **sole responsibility of the employee**.

4. **Usage and Maintenance**

   Employees are required to maintain cleanliness, discipline, and proper upkeep of the accommodation and shared facilities. Any **damage, misuse, or negligence** resulting in loss to Company property may lead to **deduction from salary or disciplinary action**, as deemed appropriate by Management.

5. **Occupancy and Vacating Rules**

   The accommodation provided is **strictly for official use** and **non-transferable**. Employees must vacate the premises **within 24 hours of cessation of employment or transfer**, whichever is earlier, and **return all keys and belongings** to the designated site authority.

   Failure to do so may result in recovery of applicable **penalties, rent, or charges** from the employee's dues or Full & Final Settlement.

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**G – RELIVING PROCESS TERM & NOTICE PERIOD.**

1. After submission of resignation, any pending leave shall not be considered or adjusted against the notice period.
2. If an employee takes leave during the notice period without prior written approval from the HR Department and Reporting Manager, the following conditions shall apply: The notice period shall automatically be extended by the number of days of leave taken; or In case of unapproved absence, such days shall be marked as "Absent" and salary for those days shall be deducted accordingly. Employees are therefore required to ensure full attendance during the notice period unless written approval for leave is granted in exceptional circumstances.
3. Employees are required to serve the full notice period and complete proper handover

as per the Offer Letter and Company Rules & Regulations, irrespective of any reason such as personal issues, remote site location, work pressure, delay in past month salary or voucher payments, family or health concerns, travel constraints, or any other personal or professional circumstances.

4. After submission of the resignation email, the salary for the current month and any pending previous month shall be withheld and released only along with the Full & Final settlement
5. Relieving letter & experience certificates shall be provided only after receipt of No due certificates from HR, Admin, Account & Execution Head.
6. During the notice period, employees are required to work with full commitment and in alignment with the company's priorities. All assigned tasks and responsibilities must be properly completed and handed over before the last working day. Failure to comply or complete the assigned work during the notice period may impact the processing of Full & Final settlement.
7. Full and Final Settlement

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The Full and Final (F&F) Settlement of any employee shall be processed and released within forty-five (45) working days from the latest of the following dates, whichever occurs last:

- The date of completion of handover of duties, responsibilities, and company property to the respective Reporting Manager.
- The date of receipt of No Dues Clearance from all relevant departments, including but not limited to Human Resources, Administration, Accounts, and Execution.
- The last working day of the employee, as determined in accordance with the notice period stipulated in the Offer Letter or Employment Agreement.

  Note: In the event that the notice period actually served by the employee is less than the period prescribed under the Offer Letter or Employment Agreement, the same shall be considered valid only upon receipt of written approval from both the Head of Department and the Human Resources Department
- After submission of resignation, the Management reserves the right to reduce or waive the notice period, either in full or in part, based on factors such as work pendency,

project requirements, handover status, or operational exigencies, at its sole discretion.

- Failure to comply with the above requirements may result in withholding or delay of the Full and Final Settlement until all obligations are duly fulfilled.

**H – TAKE CARE OF RESPONSIBILITIES**

1. You will devote your entire time to work for the company and will not undertake any direct/Indirect work or business, honorary or for remuneration except with the written permission from the management for every specific assignment.
2. You are required to deal with company's money, material and documents with utmost honesty and professional ethics. If you are found guilty at any point of time of the act of moral turpitude or of dishonesty in dealing with company's material and documents or indulge in theft or misappropriation regardless of the value involved in your services you would be summarily terminated with immediate effect not withstanding any other terms and conditions mentioned in the appointment letter. In such case no prior notice or payment in lieu thereof will be given or paid to you.

**I - NOTIFICATION OF EXTENDED ABSENCE.**

- If you remain absent without sanctioned leave for a continuous period of 7 days or more, you shall be deemed to have abandoned the employment at your own. This would be deemed to be independent violation and you would cease to be in the employment of the company forthwith thereafter.
- If you leave the organization without any information/resignation to your reporting personnel, you would be summarily terminated with immediate effect not withstanding any other terms and conditions mentioned in the appointment letter and you will have to pay amount equal to one month notice period and in such case no payment in lieu thereof will be paid to you.

**J – MISCONDUCT TERMS & POLICY**

1. Upon receiving a report of misconduct, the company will conduct a thorough and impartial investigation to gather relevant facts and evidence. The investigation may involve interviewing witnesses, reviewing documentation, and taking any other

necessary steps to determine the validity allegations.

2. Notwithstanding anything to the contrary herein contained, misconduct on your part (such misconduct to be determined by the Standing Orders of the Company/ General Rules and Regulations of the Company.). will entitle us to terminate your services without any notice or payment in lieu of notice.
3. In case any case we are not responsible if employee not serious for notice period.

**K – DISCLAIMER OF LAIBILITY FOR ACCIDENT INDURY AND INSURANCE REQUIREMENT.**

Accidental Injury and Risk Acknowledgement:

The employee acknowledges that while performing duties or being present at the Company's offices, project sites, or any authorised workplace, certain occupational risks may exist due to the nature of operations. The employee agrees to exercise due care and adhere to all safety protocols, standard operating procedures, and supervisory instructions to ensure personal and workplace safety.

**No Liability for Accidental Injury:**

The Company shall **not be liable or responsible** for any personal injury, loss, or damage sustained by the employee arising from:

- The employee's own negligence, misconduct, or failure to follow safety norms;
- Any accidental or unforeseen incident occurring during official duty, travel, or while on Company premises; or
- Any cause beyond the reasonable control of the Company, including third-party negligence or acts of nature.
- Except as provided under statutory laws, no claim or compensation shall be entertained against the Company, its management, or representatives in respect of such injury or loss.
- **Statutory Coverage under ESIC:**

  The Company is duly registered under the **Employees' State Insurance Act, 1948** and provides **ESIC coverage** to all eligible employees as per statutory norms. Employees falling within the prescribed **ESIC salary limit** shall be mandatorily registered under the ESIC scheme and shall be entitled to all benefits thereunder.

Once statutory ESIC contributions are remitted by the Company, its liability for any further medical or injury-related claim shall be deemed fully discharged.

- **Personal Insurance for Non-ESIC Employees:**

  Employees who **do not fall under the ESIC coverage** (due to salary or category of employment) are required to maintain **valid personal accident and medical insurance** at their own cost throughout their period of employment.

  A copy of such insurance policy must be submitted to the HR Department at the time of joining or renewal. The Company shall not be responsible for any medical, accident, or hospitalisation expenses incurred by such employees unless specifically covered under a company-sponsored insurance scheme.

  **Employee's Responsibility:**

  The employee shall:

- Immediately report any injury, unsafe act, or accident to the Reporting Manager and HR Department;
- Use prescribed personal protective equipment (PPE) at all times on site; and
- Avoid engaging in any unauthorised, unsafe, or negligent activities that may cause harm to self, others, or company property.

  **Acknowledgement:**

  By accepting and continuing employment, the employee agrees and acknowledges that:

- ESIC coverage, where applicable, is the sole statutory protection available through the Company; and
- In absence of ESIC eligibility, the employee assumes full responsibility for maintaining personal insurance coverage at his/her own cost; and
- All site engineers must strictly follow the Company's Safety and PPE (Personal Protective Equipment) Policy while on duty at any site or client premises. Wearing safety gear such as a helmet, shoes, reflective jacket, gloves, and harness (where required) is **mandatory at all times**.
- PPE provided by the Company remains its property and must be kept in good condition and returned upon separation. Any safety violation, non-use of PPE, or unsafe conduct will be treated as **serious misconduct** and may lead to disciplinary action, including suspension or termination.

- All incidents, near misses, or injuries must be immediately reported to the Site In-charge and HR Department.
- In case of loss or damage to PPE due to negligence or misuse, the cost of replacement shall be recovered from the employee's salary or full and final settlement.
- The Company shall not be held liable for any injury, loss, or damage beyond statutory obligations.

**L – DRESS CODE POLICY**

1. HO Employee - Monday to Friday business formal is compulsory. On satday/any predefined specified dress code by management, Casual wear is allowed. For employees visiting / working at a client's location the dress code shall be in accordance with the code observed by the client. Site visits from Office – 100% safety should be followed.
2. Site Employee - Monday to Friday business formal is compulsory. On sat day/any predefined specified dress code by management, Casual wear is allowed. 100% safety should be followed.

**M – AVAILABILITY DURING HOLIDAYS AND AFTER OFFICE HOURS**

Given the nature of the Company's business operations in the contracting and project execution sector, work activities may extend beyond standard working hours, including night shifts, weekends, and public holidays. Therefore, it is essential for all employees — whether stationed at project sites or at the Head Office — to remain reachable and responsive during such periods to ensure uninterrupted operational continuity and compliance with client commitments.

**Policy Guidelines**

1. Availability and Responsiveness

   All employees are required to remain available on official communication channels such as mobile phone, WhatsApp, and email, even on Sundays, public holidays, or after regular office hours, whenever operational or project-related requirements arise.
2. Response Obligation

   Employees are expected to respond promptly to official calls or messages from the

Management, Reporting Heads, or Clients. In the event of genuine personal circumstances preventing immediate response, the employee must return the call or message within a reasonable period, not exceeding thirty (30) minutes, and communicate the reason for the delay via text or WhatsApp message.

3. Failure to Respond

   Repeated failure to respond to official communications, calls, or instructions without valid justification shall be treated as Non-Cooperation in Official Duty. Such conduct may attract appropriate disciplinary measures, including but not limited to - Written warning, Deduction of allowances, or Other administrative or disciplinary action as deemed fit by the Management, depending on the severity of non-compliance.

4. Critical and Emergency Situations

   During critical, time-sensitive, or emergency project circumstances, non-responsiveness or refusal to comply with instructions from authorized personnel shall be treated as Negligence of Duty. This may have direct implications on the employee's performance evaluation, or continuation of assignment.

5. Extended Working Hours

   All employees are expected to extend their working hours beyond regular office timing when required, to meet project deadlines, client schedules, or site exigencies. Such additional working hours shall be considered part of the employee's professional obligation, and compliance therewith shall be treated as a measure of the employee's commitment and accountability towards organizational objectives.

**N – Company Property Misuse & Confidential Information Misuse**

1. **Return of Company Property:**

   Every employee shall return all company property, including but not limited to laptops, mobile devices, ID cards, access cards, uniforms, tools, documents, drawings, site materials, vehicles, and any other assets issued to them, **on or before the last working day** of their employment.

2. In case the employee fails to return any company property within the stipulated time, the Company reserves the right to:

- **Recover the cost** of such property or asset from the employee's **Full & Final Settlement**, or initiate **legal recovery proceedings** if required.
- **Withhold Full & Final Settlement** until all company assets are duly returned and verified by the concerned department.
- **Report the incident** to law enforcement or take appropriate **civil and criminal action** in case of deliberate loss, theft, or damage to company property.
- **Misuse or Non-Return of Company Assets:**

  Any misuse, unauthorized use, or negligence leading to damage of company property shall be treated as **misconduct** under the Company's Disciplinary Policy.

  The Company shall have full right to recover the **actual or depreciated cost** of the item(s), including applicable taxes and penalties, from any pending dues, salary, or settlement payable to the employee.

- **Confidentiality and Data Protection:**

  Employees are strictly prohibited from disclosing, transferring, copying, or sharing any confidential, technical, commercial, or project-related information belonging to the Company with any third party, client, vendor, or competitor, either during employment or after separation.

  This includes but is not limited to:

- Technical drawings, project data, or client details
- Pricing, costing, or quotation data
- Internal policies, formats, HR or financial records
- Photographs, videos, or digital data of project sites or company operations
- Any such act shall be treated as **a serious breach of trust and violation of confidentiality**, and the Company reserves the right to take **disciplinary, civil, or criminal legal action** as per applicable laws, including under the **Information Technology Act, 2000** and **Indian Penal Code**.
- **Effect on Full & Final Settlement:**

  In the event of any pending return of company assets, loss or damage to property, or breach of confidentiality obligations, the Company may **withhold, defer, or adjust the Full & Final Settlement** until such issues are fully resolved to the Company's satisfaction.

**O – NON COMPETE AND NON SOLICIATION CLAUSE**

- During the course of employment, the employee shall not, directly or indirectly, engage in, be concerned with, or render services to any other business, client, contractor, or competitor that is engaged in work similar to or in conflict with the business interests of the Company, without the prior written consent of the Management.
- Any such act shall be deemed a **breach of employment terms** and may result in immediate disciplinary action, including termination and legal proceedings.

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